

REPUBLIC OF KAZAKHSTAN — MINISTRY OF JUSTICE
COMMITTEE FOR INTELLECTUAL PROPERTY RIGHTS
REPUBLICAN STATE ENTERPRISE
“NATIONAL INSTITUTE OF INTELLECTUAL PROPERTY” (NIIS)

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Please reference application No. 2026/0347.1 of 24.03.2026 in all correspondence.

QUERY

(54) Regarding the patent application for the invention “Platform of Neurointegrative Isomorphic Resonance for Resonant Integrative Functional Transcommunication”

The Patent Application for a patent of the Republic of Kazakhstan for an invention, in addition to the citizen of the Republic of Kazakhstan Banchenko Denis Yurievich, also designates a foreign individual as applicant — KAPUSTIN MYKHAILO MYKHAILOVYCH (Federal Republic of Germany).

Pursuant to Article 36, paragraph 5 of the Patent Law of the Republic of Kazakhstan dated 16 July 1999, No. 427-I (as amended and supplemented as of 25.01.2026) (hereinafter — the Law), individuals residing outside the Republic of Kazakhstan, or foreign legal entities, exercise their rights as applicants, patent holders, and interested parties before the authorized body and its organizations through patent attorneys.

Article 38, paragraph 1 of the Law establishes that foreign individuals and legal entities enjoy the rights provided by the Law on equal terms with individuals and legal entities of the Republic of Kazakhstan, by virtue of international treaties to which the Republic of Kazakhstan is a party, or on the basis of the principle of reciprocity.

At present, there is no bilateral agreement between the Federal Republic of Germany and the Republic of Kazakhstan granting nationals of one state the right, on the basis of the principle of reciprocity, to conduct business directly with the patent office of the other state.

In this regard, pursuant to Article 36, paragraph 5 of the Law, we hereby inform you of the necessity to appoint a representative of the applicant — a patent attorney of the Republic of Kazakhstan — in order to exercise the applicant’s rights to obtain a patent for the invention. The authority of the patent attorney is confirmed by a power of attorney.

In view of the foregoing, we request that a response to this examination query be submitted **within three months** from the date of dispatch of this query. Following submission of the response, examination of the application will continue.

Should the response to the query, or a petition for extension of the established deadline, not be submitted within the specified period, the application shall be deemed **withdrawn** in accordance with Article 22, paragraph 3 of the Law of the Republic of Kazakhstan (Art. 22(3)).

Signed with EDS (Electronic Digital Signature):

D. Alimzhanova (*Head of Department*)

O. Zhubanov (*Deputy Head of Department*)